

Form 59.46

20

No.

Supreme Court of Nova Scotia
(Family Division)

Between: [copy standard heading]

[full name, including middle name(s)]

Applicant

and

[full name, including middle name(s)]

Co-Applicant

Joint Application for Divorce

The applicants request a divorce

The applicants apply to the court for a divorce order [and a corollary relief order] consistent with an agreement dated , 20 , which settles all issues concerning the dissolution of their marriage and corollary relief.

Accordingly, the applicants request this joint application be referred directly to a judge without opportunity for a hearing.

Motion

The applicants jointly move for a divorce order and for a corollary relief order consistent with the agreement.

Information and evidence in support

The evidence in support of the motion is as follows:

- ☐ marriage certificate [if marriage certificate cannot be produced, an affidavit must be filed proving the marriage and providing sufficient reasons for not proving it by certificate]
- ☐ affidavits, or a joint affidavit, of the applicants proving the required facts and claims, and attaching the written agreement between the applicant as an exhibit to the affidavit [modify if only one applicant files an affidavit]

[May delete any of the following that do not apply]

- ☐ waiver of financial statements filed on , 20
- ☐ written undertaking not to appeal the divorce order filed on , 20
- ☐ applicant's, [name] , parenting statement filed on , 20
- ☐ co-applicant's, [name] , parenting statement filed on , 20

- ☐ applicant's, [name] , statement of income filed on , 20
- ☐ co-applicant's, [name] , statement of income filed on , 20
- ☐ applicant's, [name] , statement of special or extraordinary expenses filed on , 20
- ☐ co-applicant's, [name] , statement of special or extraordinary expenses filed on , 20
- ☐ applicant's, [name] , statement of expenses filed on , 20
- ☐ co-applicant's, [name] , statement of expenses filed on , 20
- ☐ applicant's, [name] , statement of undue hardship circumstances filed on , 20
- ☐ co-applicant's, [name] , statement of undue hardship circumstances filed on , 20
- ☐ applicant's, [name] , statement of property filed on , 20
- ☐ co-applicant's, [name] , statement of property filed on , 20
- ☐ draft divorce order
- ☐ draft corollary relief order
- ☐ two stamped envelopes with the designated address of one applicant and two stamped envelopes with the designated address of the other applicant
- ☐ other required statements or documents [specify] .

Non-parties

Are there other persons *with* contact time, interaction, or parenting time with the child/children?

- ☐ Yes, details in the Affidavit.
- ☐ No

Are there other persons *looking for* contact time, interaction, or parenting time with the child/children?

- ☐ Yes, details in the Affidavit.
- ☐ No

Contact information

The applicant [name] designates the following address:

The co-applicant [name] designates the following address:

Documents delivered to these addresses are considered received by the applicant who designated the address on delivery.

Declaration & certificate

I declare that the statements in this application for divorce are true to the best of my personal knowledge, or information given to me that I believe to be true, and I certify that I am aware of my duties under sections 7.1 through 7.5 of the *Divorce Act*, which include:

1. I must exercise any parenting time or decision-making responsibility that I have with respect to any child/children of the marriage in a manner that is consistent with the best interests of the child/children;
2. To the best of my ability, I must protect the child/children of the marriage from conflict arising from this proceeding;
3. To the extent that it is appropriate to do so, I must try to resolve the issues in this proceeding through a family dispute resolution process;
4. I must provide complete, accurate and up-to-date information as required under the *Divorce Act*, as part of this proceeding and under a Court Order; and,
5. If I am subject to an order made under the *Divorce Act*, I must follow and comply with the order until it is no longer in effect.

Signed by [name of applicant] on , 20

Signature of applicant

Signed by [name of co-applicant] on , 20

Signature of co-applicant

Counsel's certificate [delete if not applicable]

I, counsel for [name of applicant] , certify that I have complied with the requirements of section 7.7 of the *Divorce Act*.

Signature of counsel

Print name:

[delete if not applicable]

I, counsel for [name of co-applicant] , certify that I have complied with the requirements of section 7.7 of the *Divorce Act*.

Signature of counsel
Print name:

Court officer's certificate

I certify that this joint application for divorce was filed with the court on , 20 .

Court Officer